

delivery under the contract (hereinafter “Goods”), in order to establish whether the components, materials and workmanship are of the requisite quality and quantity.

This shall take place upon delivery, and in accordance with Article 25 of the General Conditions at the delivery addresses as specified in Appendix I to Annex II + III: Technical Specifications + Technical Offer (table Delivery locations).

The Contracting Authority may reject any Goods or any part thereof that fail to pass any test and/or inspection or do not conform to the specifications. The Contractor shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Contracting Authority, and shall repeat the test and/or inspection, at no cost to the Contracting Authority.

The Contractor agrees that neither the execution of a test and/or inspection of the Goods or any part thereof, nor the attendance by the Contracting Authority or its representative, nor the issue of any report, shall release the Contractor from any warranties or other obligations under the Contract.

The Contracting Authority shall give notice to the Contractor stating the nature of any such defects together with all available evidence thereof, promptly following the discovery thereof. The Contracting Authority shall afford all reasonable opportunity for the Contractor to inspect such defects.

Upon receipt of such notice, the Contractor shall, within the period mutually agreed, which shall not be longer than 30 calendar days, expeditiously repair or replace the defective Goods or parts thereof, at no cost to the Contracting Authority.

If having been notified, the Contractor fails to remedy the defect within the period agreed, which shall not be longer than 30 calendar days, the Contracting Authority may proceed to take within a reasonable period such remedial action as may be necessary, at the Contractor’s risk and expense and without prejudice to any other rights which the Contracting Authority may have against the Contractor under the Contract

Article 26 General principles for payments

26.1 Payments shall be made in euros.

Payments shall be authorised and made by the Contracting Authority.

In the case of indirect management ex ante procedures and where invoices are presented to the authorities of the country of the contracting authority, the contractor must inform the European Commission at Delegation of the European Union to Montenegro, Finance, Contract and Audit unit, Postal address: Vuka Karadzica 12 81 000 Podgorica, Montenegro thereof by sending a copy of the correspondence.

26.3 By derogation, the final payment to the contractor of the amounts due shall be made within 90 days after receipt by the contracting authority of an invoice and of the application for the certificate of provisional acceptance.